



EVL1 — Introduction to Evidence and Proof

Module 5 — Burden of Proof

Lesson 2: Shifting the Burden

Student Lesson Notes

WHEN DOES THE BURDEN SHIFT?

Important Clarification

When lawyers say the burden shifts in a criminal trial, they almost always mean the EVIDENTIAL burden — not the legal burden. The legal burden in criminal cases NEVER shifts from the prosecution to the accused.

The Spotlight Metaphor

Think of the evidential burden as a spotlight moving between parties. At any given point in the trial, the spotlight falls on one party — they must adduce sufficient evidence to keep the issue alive. When they do so, the spotlight moves.

How the Evidential Burden Shifts in a Criminal Trial

- Opening: prosecution bears both legal and initial evidential burden.
- Prosecution closes its case: court assesses whether a prima facie case is established using the Francis Xavier Kayemba standard.
- If no prima facie case: defence submits no case to answer. Court upholds — accused acquitted.
- If prima facie case established: accused is called to answer. Evidential burden shifts.
- Accused raises specific defence (alibi, self-defence, provocation): accused bears the evidential burden of raising it sufficiently. Once raised, prosecution must respond and disprove beyond reasonable doubt.

The Legal Burden Never Shifts

Regardless of what the defence raises, the prosecution's legal burden of proving guilt beyond reasonable doubt remains throughout. The prosecution must disprove all properly raised defences as part of discharging its overall legal burden.

Akbar Hussein Godi v Uganda *Criminal Appeal No. 3 of 2013, Supreme Court of Uganda* — Suspicion, however strong, does not amount to proof beyond reasonable doubt. Convictions based on treating the accused's failure to explain as establishing guilt violate the presumption of innocence — the legal burden never shifts to the accused.

BURDEN OF PROOF IN CRIMINAL CASES

The Prosecution's Full Burden

In every Ugandan criminal case, the prosecution must prove every element of the offence beyond reasonable doubt. This is constitutional under Article 28(3)(a) and affirmed by *Woolmington v DPP* [1935] AC 462.

Example — murder under Section 188 of the Penal Code Act Cap. 128: the prosecution must prove (1) the accused caused the death of a human being, (2) the death was caused by an unlawful act or omission, and (3) the accused had malice aforethought. Failure to prove any one element means acquittal.

The Accused's Position

The accused need not prove anything as a general matter. The accused may sit through the entire trial without calling a single witness. If the prosecution fails to discharge its burden, the accused will be acquitted. Remaining silent is a tactical choice, not a legal obligation — the accused who chooses to remain silent is not penalised for that choice.

Exceptions in Ugandan Criminal Law

- Statutory reverse onus: provisions in the Anti-Corruption Act Cap. 116 (unexplained wealth) and firearms legislation (proof of lawful authority) may place burdens on the accused.
- Defence of insanity: Section 11 Trial on Indictments Act Cap. 25 — accused proves insanity on the balance of probabilities.
- Section 106 Evidence Act Cap. 8: facts especially within the accused's knowledge — burden falls on the accused.

Ntambala v Uganda *Criminal Appeal No. 34 of 2015, Court of Appeal of Uganda* — The court must be sure of guilt — the beyond reasonable doubt standard applies and must be properly applied in evaluating all evidence. The burden never shifts.

BURDEN OF PROOF IN CIVIL CASES

The General Rule

In civil proceedings, the burden is governed by Section 101 of the Evidence Act Cap. 8. The general principle is he who asserts must prove. The standard of proof is the balance of probabilities — the party must show their version is more probable than not.

Plaintiff's Initial Burden

The plaintiff bears the initial burden of proving the elements of the cause of action. In a contract claim: valid contract existed, defendant breached it, and plaintiff suffered loss. Until the plaintiff adduces sufficient evidence, the defendant need not respond.

Defendant's Burden on Affirmative Defences

Where the defendant raises an affirmative defence, the defendant bears the burden of proving that defence on the balance of probabilities. Examples:

- In a land dispute — defendant claiming he purchased the land from the original owner: defendant bears the burden of proving that purchase.
- In a contract case — defendant claiming the contract was induced by fraud: defendant bears the burden of proving the fraud.
- In a negligence claim — defendant alleging plaintiff contributed to their own loss: defendant bears the burden of proving contributory negligence.

Burden Analysis Issue by Issue

In civil proceedings, both parties may bear burdens on different issues within the same case. Burden analysis must be done issue by issue rather than for the case as a whole. The party who fails to discharge their burden on any particular issue loses on that issue.

Uganda Electricity Board v G.W. Musoke *Civil Appeal No. 30 of 1993* — Ugandan civil courts applying the balance of probabilities standard — examining all evidence and determining whose account is more probable.

LESSON SUMMARY — KEY POINTS

- ✓ When lawyers say the burden shifts in criminal trials, they mean the EVIDENTIAL burden — the legal burden never shifts from the prosecution
- ✓ The evidential burden moves like a spotlight — at any point one party bears it, when they discharge it the spotlight moves
- ✓ After prima facie case is established, evidential burden shifts to the accused to respond

- ✓ When accused raises a defence, accused bears the evidential burden of raising it sufficiently
- ✓ The prosecution must disprove all properly raised defences — legal burden never shifts
- ✓ Akbar Hussein Godi v Uganda Criminal Appeal No. 3 of 2013 — suspicion is not proof, the legal burden never shifts
- ✓ In civil cases: plaintiff bears burden on claim, defendant bears burden on affirmative defences, both may bear burdens on different issues
- ✓ Civil standard: balance of probabilities — Uganda Electricity Board v G.W. Musoke Civil Appeal No. 30 of 1993

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

1. When lawyers say the burden of proof shifts in a criminal trial, which type of burden do they mean?
2. What must the prosecution do to discharge the initial evidential burden in a Ugandan criminal trial?
3. An accused raises the defence of alibi. What burdens are engaged and on whom does each fall?
4. In Akbar Hussein Godi v Uganda Criminal Appeal No. 3 of 2013, what principle regarding the burden of proof did the Supreme Court emphasise?
5. In a Ugandan civil case, who bears the burden of proving an affirmative defence?